

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by VODAFONE ESPAÑA, S.A.U. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated May 17, 2024, and based on the following

FACTS

FIRST: On May 17, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202308186, by virtue of which VODAFONE ESPAÑA, S.A.U. was imposed: "FIRST: TO IMPOSE on VODAFONE ESPAÑA, S.A.U., with NIF A80907397, a fine of 200,000.00 euros (TWO HUNDRED THOUSAND euros) for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER VODAFONE ESPAÑA, S.A.U., with NIF A80907397, that, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requirements made in the framework of the proceedings with file number EXP202210932 and to which reference has been made in the background of this resolution."

Said resolution, which was notified to the appellant on May 21, 2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00306/2023, the following was recorded:

"FIRST: The information requests indicated in the third and fourth backgrounds were notified to the respondent party in accordance with the provisions of the LPACAP and recorded as evidenced in the acknowledgments of receipt contained in the file.

SECOND: To the requests asking for confirmation of the receipt in the complainant's numbers of the calls made by the line ***PHONE.1, the respondent party limited itself to responding that the calling number belonged to another operator since May 2021, despite having the requested information as VODAFONE ESPAÑA, S.A.U. is the entity that operates the complainant's numbers through one of its brands (LOWI).

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the respondent party on September 27, 2023.

FOURTH: The respondent party has submitted allegations to the agreement to initiate this sanctioning procedure described in the eleventh background.

FIFTH: The notification of the proposed resolution of the present sanctioning procedure was received by the respondent party on January 17, 2024.

SIXTH: The respondent party has submitted allegations to the proposed resolution of this sanctioning procedure recorded in the fourteenth background."

THIRD: The appellant submitted a reconsideration appeal on June 21, 2024, to this Spanish Agency for Data Protection.

The appellant states that "This Agency has maintained all the reasons indicated both in the Agreement and in the Proposal of the sanctioning file, without considering what my represented party has stated, nor clarifying the reason why it has resolved contrary to what my represented party indicated."

The appellant refers in its entirety to the allegations to the Agreement to initiate and to the allegations to the Proposed resolution, adding the following.

The appellant, regarding the calling number ***PHONE.1, states that "As the numbering was from the reseller Akra Leuka Consulting, Vodafone could not obtain information about the calls made by the line ***PHONE.1 without accessing traffic information, which requires judicial authorization as it involves access to data subject to Law 25/2007, of October 18, on the retention of data related to electronic

communications and public communications networks (hereinafter, "Data Retention Law"). Regarding this, the present Agency in its resolution indicates that (the underlining is ours):

"it is noted that in this case the aforementioned exclusion to the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, since it cannot be accepted that the mere confirmation that a specific call has been made between two numbers can be considered as traffic data processed 'exclusively' to comply with the obligations provided in Law 25/2007."

In response to this assertion, we express our respectful disagreement, as to provide the "mere confirmation" of a call, my represented party must access traffic data. As reiterated, the calling number has not belonged to Vodafone since May 2021, so it had to access the traffic data of the called numbers to confirm the receipt of the requested call.

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Vodafone, as this Agency is aware, has a specific tool to safeguard traffic information, which is subject to strict audit and security controls, and can only be accessed when requested by authorized agents, as stated in Article 6.2 of the Data Retention Law, and always provided that such requests are made through the corresponding judicial authorization. To provide this confirmation, my client needed to access said tool, which they were not authorized to do as they had not received a prior judicial request. All of this was indicated multiple times to this Agency by my client, who at all times complied with the information requests issued by this Agency, resulting in the two files opened due to the complaint by Ms. A.A.A. filed against Vodafone, resulting in the non-admission of file EXP202208065, which is submitted as Document number 1, and the archiving of the proceedings of file EXP202210932, submitted as Document number 2. Therefore, it could be concluded that this Agency understood that my client had indeed fulfilled their duty of cooperation after responding to and collaborating on all requests issued by the Agency in relation to the Claimant.

Finally, my client proceeded to send the information requested by this Agency regarding EXP202210932, which had initially been archived, having been prompted to do so by my principal in their Resolution. The allegations were submitted by my client on June 4, 2024, with registration number REGAGE24e00041093135."

In light of the above, the appellant requests that the file be dismissed with the consequent archiving of the proceedings, claiming that none of the alleged infringements were committed, and that, subsidiarily, in the event that any sanction is imposed, it should be set at the minimum amount, in light of the mitigating circumstances alleged and the appropriate delineation of responsibility in the processing of personal data of the affected parties involved.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of the LOPDGDD.

II

Response to the allegations presented

In relation to the statements made by the appellant, for the most part, they reiterate the allegations already presented throughout the sanctioning procedure, which have already been analyzed and dismissed in the Legal Grounds.

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Second and third grounds of the contested Resolution, as transcribed below.

"II

Allegations regarding the initiation agreement

In response to the allegations presented by the respondent party, the following should be noted.

Regarding the assertion that this Agency denied the respondent party access to the complete file of this case, thereby limiting its ability to defend itself, it has already been indicated that the file of this procedure was sent in full and properly. The writings and other investigations conducted regarding the third parties involved in the investigation that the respondent party requested are unrelated to the basis of this sanctioning procedure and are part of another file, number EXP202210932, independent of this one. As can be inferred from the allegations presented, the respondent party was aware of the information that was requested of it, and the lack of submission of this information is the origin of the present sanctioning procedure. The respondent party has had the opportunity to present any allegations and evidence it deemed appropriate for its defense, thus no violation of the right to defense has occurred.

Regarding the respondent party's assertion that, had it provided the requested information, the outcome of the Agency's investigation would not have changed, it should be noted that the infringing act is completed with the lack of response to the requested information and is not conditioned on the potential consequences of its non-compliance. It is up to this Agency to assess the necessity for the investigation of the requested information at the time it is made. The contrary would imply accepting that compliance with the legal obligation to respond to this Agency's information requests cannot be demanded until the proceedings are concluded and the outcome is determined.

Concerning the respondent party's argument that, under Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it could not provide this Agency with the requested data without the proper judicial authorization, it is noted that in this case the aforementioned exclusion from the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, since it cannot be accepted that the mere confirmation of a specific call between two numbers can be considered as traffic data treated "exclusively" to comply with the obligations set forth in Law 25/2007.

In this regard, Article 52 of the LOPDGDD expressly states within the duty of cooperation that, in the event that the conduct was carried out using a fixed or mobile telephone service, information must be provided on "3. The mere confirmation that a specific call has been made between two numbers on a certain date and time."

In the currently disputed case, the request was not for the transfer of specific data, but rather the mere confirmation of information that the AEPD already had and transmitted to VDF for the purpose of its confirmation, as the AEPD was aware of the information.

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caller number, as well as the specific time and date when said call was made to the claimant's number. And all of this, in addition to the fact that this confirmation of information is expressly provided for and determined by the legislator within the duty of collaboration mentioned in Article 52 of the LOPDGDD. Regarding the inability to appreciate the existence of culpability, it is recalled that, indeed, the principle of responsibility provided in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, the groups of affected parties, unions, and entities without legal personality and independent or autonomous estates, may be sanctioned for acts constituting administrative infractions, which are deemed responsible for them by way of intent or negligence."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has declared that objective or non-fault liability is not applicable in the administrative sanctioning field, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions solely based on the result, without demonstrating a minimum level of culpability even in terms of mere negligence, is excluded. However, the manner of attributing responsibility to legal entities does not correspond to the forms of intentional

or negligent culpability that are attributable to human conduct.”

Thus, in the case of infractions committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011 (cassation appeal in the public interest 48/2007), it is necessarily applied differently than it is for individuals. According to STC 246/1991 “(...) this different construction of the attribution of authorship of the infraction to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability derives from the legal interest protected by the norm that is infringed and the necessity for that protection to be truly effective and due to the risk that, consequently, the legal entity subject to compliance with that norm must assume.”

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that "although the culpability of the conduct must also be subject to proof, it should be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it form part of the proven typical conduct, and that their exclusion requires demonstrating the absence of such elements, or in their normative aspect, that the diligence required by the one claiming its non-existence has been employed; in summary, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior."

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Therefore, the lack of culpability is dismissed since the party being claimed did not adequately respond to the requirements made by this Agency, thus calling into question the diligence employed.

Finally, the absence of benefits cannot be considered a mitigating factor according to the Judgment of the AN, dated 05/05/2021, rec. 1437/2020, which states: “On the other hand, it is considered that the non-commission of a prior infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that, among other things, the circumstance 'e) any prior infringement committed by the controller or the processor' must be taken into account for the imposition of the administrative fine. This is an aggravating circumstance; the fact that the budget for its application does not concur means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor”; applied to the case being judged, the lack of the budget for its application regarding Article 76.2.c) of the LOPDGDD, that is, obtaining benefits as a consequence of the infringement, does not allow its application as a mitigating factor.

This criterion of graduation is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

If we add to this that the sanctions must be “in each individual case” effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the principles indicated.

Thus, valuing the absence of benefits as a mitigating factor would nullify the dissuasive effect of the fine, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit to which they are not entitled. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the norm without obtaining benefits, financial or otherwise, will not produce a negative effect proportional to the seriousness of the infringing act.

In any case, the administrative fines established in the GDPR, in accordance with what is established

in its Article 83.2, are imposed based on the circumstances of each individual case and it is not considered that the absence of benefits is an adequate and determining graduation factor for assessing the seriousness of the infringing conduct. Only in the case that this absence of benefits is relevant for determining the degree of unlawfulness and culpability present in the specific infringing action can it be considered as a mitigating factor, in application of Article 83.2.k) of the GDPR, which refers to “any other aggravating or mitigating factor applicable to the circumstances of the case.”

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For all these reasons, the request of the respondent party regarding the filing of the present sanctioning file cannot be granted, nor can the reduction of the initially proposed sanction based on the mitigating factors mentioned be accepted.

III

Allegations to the Proposal for Resolution

In response to the allegations against the Proposal for Resolution of the present file submitted by the respondent party, the following must be noted.

The allegations presented against the Proposal for Resolution of this file largely reproduce the same arguments made against the Initiation Agreement, which have already been addressed by this Agency in the previous legal basis; therefore, references will be made to it as appropriate.

Regarding the First Allegation, concerning the disagreement expressed by the respondent party regarding this Agency's assertion that in the present case the exclusion from the duty of cooperation imposed by Article 52 of the LOPDGDD does not apply, reference is made to what was stated in the previous legal basis, to which it is pertinent to add the following.

When the request was made in the context of the investigation, the respondent party justified its lack of response to the requested information by stating that the line in question had belonged to another operator since May 2021.

Thus, at that time, the respondent party did not argue otherwise, nor did it state in its response that it could not provide the information in accordance with Law 25/2007, an argument it presents in the current sanctioning procedure. That is to say, when the connection to its own actions is unfavorable to it, it opens a sanctioning procedure. If the reason why, according to the respondent party, it could not provide the information is related to Law 25/2007, it is inconsistent that it gave a different response that did not address what was asked in the request. All of this demonstrates a lack of willingness to cooperate in providing mere confirmation of the existence of the call.

Regarding the Second Allegation, in response to the respondent party's argument that, had it provided the requested information, the outcome of the investigation would not have changed, and therefore the severity of the potential infringement, it states, should be reduced, it should be emphasized, with respect to what has already been explained in the previous legal basis, that the reason for this sanctioning procedure is not the making of commercial communications to Ms. A.A.A.'s line.

Specifically, this procedure is initiated due to the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, for failing to provide the required information for the exercise of this Agency's functions. Therefore, as already indicated, the infringing type is completed with the lack of response to the requested information and is not conditioned on the eventual consequences of its non-observance.

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Regarding Allegation Three, the fact that the respondent has implemented monitoring and auditing systems to control unauthorized, illegal, or fraudulent activity concerning commercial calls, as well as having subscribed to the Ethical Code in Commercial Contact Operations, is not related to the

infringement being processed in this procedure, which is not the making of commercial calls, but the failure to provide access to the requested information in violation of Article 58.1 of the GDPR, and therefore cannot be considered as a mitigating factor.

Concerning Allegation Four, regarding the respondent's opinion that culpability cannot be appreciated since it did respond, it states, adequately to the information requests, complying with the regulations it considers applicable, specifically the Data Retention Law, reference is made to what has already been stated in the previous legal basis.

Regarding Allegation Five, on the aggravating and mitigating circumstances referred to by the respondent, the following is indicated.

With respect to the aggravating factor of negligence in the infringement, reference is made to what was indicated in the previous legal basis.

In relation to this Agency not applying when evaluating the sanction "The degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement," in response to what was alleged in the Initiation Agreement, the respondent adds that, "in order to remedy this type of infringement, my client has implemented monitoring and auditing measures to control unauthorized, illegal, or fraudulent activity concerning commercial calls." In this regard, it is reiterated that the infringement for which this procedure is being instructed, as clearly stated in the grounds dedicated to the breached obligation, classification, and sanction, is the failure to provide access to the required information and not the making of commercial calls. Therefore, the aforementioned measures are not related to the possible mitigation of the effects of the infringement. It should also be added that cooperation consisting of applying the necessary measures to control illegal activity cannot be valued as a possible mitigating factor, since this is a duty imposed on the data controller, which is even more emphasized within the framework of the proactive responsibility principle developed by the GDPR.

For all the above reasons, the request of the respondent regarding the dismissal of this sanctioning file cannot be accepted, nor can the reduction of the initially proposed sanction based on the indicated mitigating factors.

Therefore, against the assertion of the appellant that "This Agency has maintained all the reasons indicated both in the Agreement and in the Proposal of the sanctioning file, without considering what has been stated by my client, nor clarifying the reason why it has resolved contrary to what my client indicated," it should be noted that the contested resolution is motivated, with reference to facts and grounds.

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Regarding the response provided by the appellant on June 4, 2024, with registration number REGAGE24e00041093135, as it was ordered in the contested resolution that the requested information be provided in the requests made within the framework of the proceedings with file number EXP202210932, it is noted that the appellant stated that "The confirmation of whether a call has been received on a Vodafone line on a specific day and time, as is the case with the request from the AEPD, involves the processing of traffic data that can only be stored for the aforementioned period for the purposes outlined and regulated in the Data Retention Law. Therefore, the requested information is too old (from two years ago) and this entity does not have it. Requiring the contrary would imply that my representative would be in breach of the retention periods established by the regulations."

In this way, with this response, the appellant insists on its argument that to provide the requested information it would have had to access traffic data and limits itself to stating that, as of the date of this last response, it no longer has such information because, having passed more than twelve months since the date of the communication, it is no longer legally obliged to retain such data.

In this regard, it is relevant to point out, on one hand, that, as already substantiated during the processing of the procedure, this Agency considers that in the present case the exclusion from the duty of collaboration imposed by Article 52 of the LOPDGGD does not apply, and on the other hand,

that the appellant did have the requested information when the repeated requests for information made within the framework of file number EXP202210932 were notified to it.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by VODAFONE ESPAÑA, S.A.U. against the resolution of this Spanish Agency for Data Protection issued on May 17, 2024, in file EXP202308186.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, it will proceed to its collection in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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